

Sunita Kumari vs Balbir Bahadur on 30 January, 2024

Author: Vikas Suri

Bench: Vikas Suri

Neutral Citation No:=2024:PHHC:0

2024:PHHC:012106

IN THE HIGH COURT OF PUNJAB AND HARYANA
AT CHANDIGARH

109

TA-110-2024

Date of Decision: 30.01.2024

Sunita Kumari

...Petitioner

Versus

Balbir Bahadur

...Respondent

CORAM: HON'BLE MR. JUSTICE VIKAS SURI

Present:- Mr. S.K. Kanojia, Advocate,
for the petitioner.

VIKAS SURI, J. (Oral)

1. Prayer in this petition filed by petitioner-wife is for transfer of petition filed by the respondent-husband under Section 25 of the Guardians and Wards Act, (for short 'the Act') bearing No.GW/80/2023, titled Balbir Bahadur vs. Sunita Kumari pending in the Court of learned Principal Judge, Family Court, Hoshiarpur, to the Family Court at Jalandhar.

2. Learned counsel for the petitioner submits :-

- i) That the parties were married on 21.01.2015 according to Hindu rites and rituals.
- ii) That a girl child was born out of this wedlock on 08.07.2018, and is in the care and custody of the petitioner.
- iii) That the petitioner-wife is working as a Teacher at Innocent Heart School, Jalandhar and living separately from the respondent-husband.

vi) That the distance between place of residence of the petitioner-

wife i.e. Jalandhar and the place of proceedings under Section 25 of the Act, filed by the respondent-husband, pending before the Principal Judge, Family Court, Hoshiarpur, is about 60 1 of 5 Neutral Citation No:=2024:PHHC:012106 TA-110-2024 -2- 2024:PHHC:012106 kilometers on one side and it will be very difficult for the petitioner with her five year old daughter to attend the proceedings at Hoshiarpur.

vii) That earlier, petition filed by the respondent-husband under Section 13 of the Hindu Marriage Act, 1955 was transferred to a Court of competent jurisdiction at Jalandhar vide judgment dated 26.09.2023 passed in TA-1250-2023.

3. It is inter alia on these grounds that petitioner prays for transfer of the case, as detailed in para 1 above.

4. I have heard learned counsel for the petitioner.

5. Besides the facts as noticed hereinabove, the legal position in such like cases as the present one, is well established. In this regard, judgment of the Hon'ble Supreme Court rendered in N.C.V. Aishwarya vs. A.S. Saravana Karthik Sha, 2022 SCC Online SC 1199, wherein the Hon'ble Supreme Court has held as under:-

"9. The cardinal principle for exercise of power under section 24 of the Code of Civil Procedure is that the ends of justice should demand the transfer of the suit, appeal or other proceeding. In matrimonial matters, wherever Courts are called upon to consider the plea of transfer, the Courts have to take into consideration the economic soundness of both the parties, the social strata of the spouses and their behavioural pattern, their standard of life prior to the marriage and subsequent thereto and the circumstances of both the parties in eking out their livelihood and under whose protective umbrella they are seeking their sustenance to life. Given the prevailing socioeconomic paradigm in the Indian society, generally, it is the wife's convenience which must be looked at while considering transfer.

10. Further, when two or more proceedings are pending in different Courts between the same parties which raise common question of fact and law, and when the decisions in the cases are interdependent, it is desirable that they should be tried together by the 2 of 5 Neutral Citation No:=2024:PHHC:012106 TA-110-2024 -3- 2024:PHHC:012106 same Judge so as to avoid multiplicity in trial of the same issues and conflict of decisions."

6. Further reliance can be placed upon the judgments in Sumita Singh vs. Kumar Sanjay, AIR 2002 SC 396 and Rajani Kishor Pardeshi vs. Kishor Babulal Pardeshi, (2005) 12 SCC 237, wherein the Hon'ble Supreme Court has observed that "while deciding the transfer application, the Courts are required to give more weightage and consideration to the convenience of the female litigants and

transfer of legal proceedings from one Court to another should ordinarily be allowed, taking into consideration their convenience and the Courts should desist from putting female litigants under undue hardships."

7. Even this Court in number of cases has followed the aforesaid principle of law. Accordingly, it is well settled that while considering the transfer of a matrimonial dispute/case, at the instance of the wife, the Court is to consider the family condition of the wife, the custody of the minor child, economic condition of the wife, her physical health and earning capacity of the husband and most important the convenience of the wife i.e. she cannot travel alone without assistance of a male member of her family, connectivity of the place to and fro from her place of residence as well as bearing of the litigation charges and travelling expenses.

8. After going through the entire paper-book, considering the fact that issuance of notice to the respondent has the consequences of staying further proceedings before the trial Court, otherwise the petitioner-wife will have to bear the litigation expenses and transportation expenses and in case, notice of motion is issued, even the respondent-husband has to bear the litigation expenses and in view of the judgments i.e. Sumita Singh's case 3 of 5 Neutral Citation No:=2024:PHHC:012106 TA-110-2024 -4- 2024:PHHC:012106 (supra), Rajani Kishor Pardeshi's case (supra) and N.C.V. Aishwarya's case (supra) passed by the Hon'ble Supreme Court, this Court deems it appropriate to allow the present petition, subject to the following conditions:-

a) The petition filed by respondent-husband under Section 25 of the Act, bearing No.GW/80/2023, titled Balbir Bahadur vs. Sunita Kumari pending in the Court of learned Principal Judge, Family Court, Hoshiarpur, is transferred to the Family Court at Jalandhar.

b) The learned District Judge, Hoshiarpur is directed to transfer complete record pertaining to the aforesaid case to District Judge, Jalandhar.

c) The parties are directed to appear before the District & Sessions Judge, Jalandhar, on 21.03.2024.

d) The District Judge, Jalandhar will assign the said petition to the Court of competent jurisdiction.

9. The concerned Court at Jalandhar will make all endeavour to refer the case before the Mediation and Conciliation Centre for exploring the possibility of some amicable settlement between the parties.

10. The Court concerned, where the litigation is pending between the parties, will accommodate them with one date in one calendar month.

11. However, liberty is granted to the respondent to revive this petition, if he intends to contest the same, provided that:-

(a) The respondent will clear all arrears of maintenance amount, if any, in terms of any petition filed by the petitioner either under Section 125 Cr.P.C. or Section 12 of the Domestic Violence Act or Section 24 of the Hindu Marriage Act.

(b) The respondent will file an affidavit giving undertaking to pay Rs.1,000/-, on each and every date of hearing to 4 of 5 Neutral Citation No:=2024:PHHC:012106 TA-110-2024 -5- 2024:PHHC:012106 the petitioner for attending the Court proceedings at District Courts, Hoshiarpur.

(c) The respondent will bring a demand draft of Rs.25,000/-, drawn in favour of petitioner, towards the litigation expenses to pursue the case at District Hoshiarpur in case the respondent opts to contest this petition.

12. I am supported by the decisions rendered by a Co-ordinate Bench of this Court in TA No. 1315 of 2022, Rohini Arora v Nitin Talwar; TA No. 1322 of 2022, Jaswinder Kaur v Gurbinderjeet Singh; TA No. 1323 of 2022, Usha Rani v Karmajit Singh; and TA No.610 of 2023, Hemal vs. Manuvrat.

13. As already noticed above, since the petition is being disposed of without issuing notice to the respondent, accordingly, in these peculiar circumstances, in order to ensure appearance of the parties before the District Judge, Jalandhar, on 21.03.2024, it is directed that a copy of this order be sent to the respondent through registered post, besides sending a copy of this order to the District Judges concerned through e-mail. Petitioner through her counsel, present in the Court, is directed to ensure her appearance accordingly.

12. Disposed of.

January 30, 2024
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(VIKAS SURI)
JUDGE

Whether speaking/reasoned Yes/No

Whether reportable Yes/No

Neutral Citation No:=2024:PHHC:01